

1 ENGROSSED HOUSE
JOINT
2 RESOLUTION NO. 1046

By: Smith of the House

3 and

4 Logan of the Senate
5

6 A Joint Resolution directing the Secretary of State
7 to refer to the people for their approval or
8 rejection a proposed amendment to Section 6 of
9 Article X of the Constitution of the State of
10 Oklahoma; allowing for exempt treatment of ad valorem
11 taxation for real property that has been damaged or
12 destroyed by certain meteorological events; providing
13 for when exempt treatment will apply if tax bills
14 have been issued; prescribing definition of damaged
15 or destroyed; providing ballot title; and directing
16 filing.

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1 States except property for which a federal agency obtains title
2 through foreclosure, voluntary or involuntary liquidation or
3 bankruptcy unless the taxation of such property is prohibited by
4 federal law; all property of this state, and of counties and of
5 municipalities of this state; household goods of the heads of
6 families, tools, implements, and livestock employed in the support
7 of the family, not exceeding One Hundred Dollars (\$100.00) in value,
8 and all growing crops, shall be exempt from taxation: Provided,
9 that all property not herein specified now exempt from taxation
10 under the laws of the Territory of Oklahoma, shall be exempt from
11 taxation until otherwise provided by law.

12 All property owned by the Murrow Indian Orphan Home, located in
13 Coal County, and all property owned by the Whitaker Orphan Home,
14 located in Mayes County, so long as the same shall be used
15 exclusively as free homes or schools for orphan children, and for
16 poor and indigent persons, and all fraternal orphan homes, and other
17 orphan homes, together with all their charitable funds, shall be
18 exempt from taxation, and such property as may be exempt by reason
19 of treaty stipulations, existing between the Indians and the United
20 States government, or by federal laws, during the force and effect
21 of such treaties or federal laws. The Legislature may authorize any
22 incorporated city or town, by a majority vote of its electors voting
23 thereon, to exempt manufacturing establishments and public utilities

24

1 from municipal taxation, for a period not exceeding five (5) years,
2 as an inducement to their location.

3 ~~Up~~ Except as otherwise provided by this section, up to one
4 hundred (100) square feet of a storm shelter designed for protection
5 and safety from tornadoes or tornadic winds and installed or added
6 to an improvement to real property after January 1, 2002, shall be
7 exempt from taxation. A storm shelter shall include, but not be
8 limited to, a safe room built as part of and within an improvement
9 to real property. If title to property with an exempt storm shelter
10 is transferred, changed or conveyed to another person, such storm
11 shelter shall be assessed for that year based on the fair cash value
12 as set forth in Section 8 of this article.

13 All real property, including both land and improvements thereon,
14 constituting the primary residence of any person which is damaged or
15 destroyed, in whole or in part, by high winds, hail, tornadoes,
16 fire, earthquakes, or other meteorological events, shall be exempt
17 from ad valorem taxation in the amount of one hundred percent (100%)
18 of the assessed value thereof during the tax year in which such
19 damage or destruction occurs. If the damage or destruction occurs
20 after June of each year, the exempt treatment shall apply to the tax
21 year immediately following the year of occurrence. For the purposes
22 of this section, "damaged or destroyed" shall mean uninhabitable as
23 to make the dwelling unable to be safely or reasonably occupied for
24 residential use for a minimum of six (6) consecutive months.

1 B. The board of county commissioners of any county may call a
2 special election to determine whether or not household goods of the
3 heads of families and livestock employed in support of the family
4 located within the county shall be exempt from ad valorem taxation.
5 Such an election shall also be called by the board upon petition
6 signed by not less than twenty-five percent (25%) of the registered
7 voters of the county. Upon passage of the question, the exemption
8 provided for in this subsection shall become effective on January 1
9 of the following year.

10 SECTION 2. The Ballot Title for the proposed Constitutional
11 amendment as set forth in SECTION 1 of this resolution shall be in
12 the following form:

13 BALLOT TITLE

14 Legislative Referendum No. _____ State Question No. _____

15 THE GIST OF THE PROPOSITION IS AS FOLLOWS:

16 This measure amends Section 6 of Article 10 of the Oklahoma
17 Constitution. It provides that the full value of a primary
18 residence, including both land and improvements, shall be exempt
19 from ad valorem taxation if the property is damaged or destroyed
20 by severe weather events. This measure defines "damaged or
21 destroyed" to mean that the residence is uninhabitable and
22 cannot be safely or reasonably occupied for at least six (6)
23 consecutive months. If the damage occurs after June of each
24 year, the exempt treatment will apply the following year.

1 SHALL THE PROPOSAL BE APPROVED?

2 FOR THE PROPOSAL — YES _____

3 AGAINST THE PROPOSAL — NO _____

4 SECTION 3. The Chief Clerk of the House of Representatives,
5 immediately after the passage of this resolution, shall prepare and
6 file one copy thereof, including the Ballot Title set forth in
7 SECTION 2 hereof, with the Secretary of State and one copy with the
8 Attorney General.

9 Passed the House of Representatives the 26th day of March, 2026.

10
11 _____
12 Presiding Officer of the House
of Representatives

13
14 Passed the Senate the ____ day of _____, 2026.

15
16 _____
17 Presiding Officer of the Senate
18
19
20
21
22
23
24